

MASTER SERVICES AGREEMENT

Contract Reference: MSA-2026-001-V1 | Effective Date: January 15, 2026

SERVICE PROVIDER / CONTRACTOR:

Acme Cloud Dynamics Inc.
100 Innovation Way, Suite 400
New York, NY 10001
Notice Contact: legal@acmeclouddynamics.com

CLIENT / CUSTOMER:

Apex Global Retail LLC
500 Madison Avenue, 18th Floor
New York, NY 10022
Notice Contact: contracts@apexretailglobal.com

RECITALS & PREAMBLE

This Master Services Agreement ("Agreement") is entered into and made effective as of **January 15, 2026** ("Effective Date"), by and between **Acme Cloud Dynamics Inc.**, a Delaware corporation having offices at 100 Innovation Way, Suite 400, New York, NY 10001 ("Service Provider"), and **Apex Global Retail LLC**, a New York limited liability company having offices at 500 Madison Avenue, 18th Floor, New York, NY 10022 ("Client"). Service Provider and Client may individually be referred to as a "Party" and collectively as the "Parties".

WHEREAS, Service Provider provides enterprise cloud migration, managed hosting infrastructure, and automated data synchronization services; and

WHEREAS, Client desires to retain Service Provider to implement, migrate, support, and maintain Client's multi-region cloud workloads in accordance with the terms herein.

SECTION 1 — SCOPE OF SERVICES & MILESTONE DEADLINES

1.1 Performance of Services: Service Provider shall provide the technical deliverables, software engineering, and cloud managed infrastructure set forth in Statement of Work #1 ("SOW #1"). All work shall be executed in a professional, workmanlike manner adhering to prevailing industry standards.

1.2 Affirmative Project Deadlines & Milestones: The Parties hereby agree to the following contractual project milestones and firm delivery dates:

Milestone Description	Delivery Target Date	Obligated Party	Acceptance Criteria
Milestone 1: Multi-Region Infrastructure Architecture Plan	March 15, 2026	Service Provider	Full architecture diagram & sign-off
Milestone 2: Phase 1 Database & Asset Migration Deliverable	October 15, 2026	Service Provider	Production verification <0.01% error rate
Milestone 3: Security & SOC 2 Compliance Audit Package	November 30, 2026	Service Provider	Third-party auditor validation report
Milestone 4: Client User Acceptance Sign-Off	December 20, 2026	Client	Formal written acceptance certificate

SECTION 2 — INVOICING, FEES & PAYMENT TERMS

2.1 Contract Sum: Client shall pay Service Provider an aggregate contract sum of **\$180,000.00 USD** for the Initial Term, invoiced in equal monthly installments of **\$15,000.00 USD** on the first calendar day of each operating month.

2.2 Payment Terms (Net 30): All properly submitted and undisputed invoices shall be due and payable within **thirty (30) calendar days (Net 30)** of the invoice issuance date.

2.3 Late Payment Interest: Any undisputed amount not paid within the required thirty (30) day timeframe shall accrue interest at the rate of **1.5% per month** (or the maximum lawful rate permitted under applicable state law, whichever is lower), calculated daily from the due date until paid in full.

2.4 Taxes & Withholdings: Stated fees are exclusive of applicable federal, state, or municipal sales and use taxes, which shall be remitted by Client unless a valid tax exemption certificate is provided prior to billing.

SECTION 3 — INTELLECTUAL PROPERTY & WORK PRODUCT

3.1 Work Made for Hire: All custom software code, documentation, workflows, and deliverables created specifically for Client under this Agreement ("Deliverables") shall be deemed "work made for hire" owned exclusively by Client upon receipt of full payment.

3.2 Pre-Existing IP & Tools: Service Provider retains sole and exclusive ownership of its pre-existing libraries, toolkits, scaffolding, algorithms, and general know-how ("Background IP"). Service Provider grants Client a perpetual, worldwide, non-exclusive, royalty-free license to use Background IP solely as integrated within the Deliverables.

SECTION 4 — CONFIDENTIALITY & NON-DISCLOSURE

4.1 Definition of Confidential Information: "Confidential Information" refers to non-public technical, business, customer, or financial data disclosed by one Party ("Disclosing Party") to the other ("Receiving Party").

4.2 Standard of Protection: Receiving Party agrees to protect Confidential Information with the same degree of care it exercises with respect to its own sensitive information, but in no case less than reasonable care.

4.3 Survival Period: The obligations of non-disclosure and restricted use under this Section 4 shall survive the termination or expiration of this Agreement for a period of **three (3) years**.

SECTION 5 — DATA SECURITY & AFFIRMATIVE NOTIFICATION DUTIES

5.1 Safeguards: Service Provider shall maintain commercially reasonable technical, physical, and organizational safeguards compliant with SOC 2 Type II controls to ensure the confidentiality, integrity, and availability of Client data.

5.2 Affirmative Duty — 48-Hour Security Incident Notice: In the event of any confirmed security incident, data breach, or unauthorized access to Client PII or systems, Service Provider has an affirmative duty to notify Client in writing within **forty-eight (48) hours** of initial discovery, followed by regular status updates.

SECTION 6 — REPRESENTATIONS & WARRANTIES

6.1 Deliverable Warranty: Service Provider warrants that for a period of **ninety (90) days** following acceptance, the Deliverables will substantially conform to the agreed written specifications in SOW #1.

6.2 Disclaimer: EXCEPT FOR THE EXPRESS WARRANTIES IN THIS SECTION, NEITHER PARTY MAKES ANY WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

SECTION 7 — LIMITATION OF LIABILITY

7.1 Aggregate Liability Ceiling: TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, IN NO EVENT SHALL EITHER PARTY'S AGGREGATE CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR **\$250,000.00 USD**, WHICHEVER IS LESS.

7.2 Consequential Damages Waiver: IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA LOSS, OR BUSINESS INTERRUPTION.

SECTION 8 — INDEMNIFICATION & RISK ALLOCATION

8.1 Intellectual Property Indemnification: Service Provider agrees to defend, indemnify, and hold harmless Client, its officers, and employees against third-party claims alleging that the Deliverables infringe a valid United States patent, copyright, or trademark.

8.2 Uncapped Indemnity Carve-Out (Legal Review Flag): Liability arising under Service Provider's indemnification obligations in Section 8.1 shall NOT be subject to the limitation of liability cap set forth in Section 7.1.

SECTION 9 — TERM, RENEWAL & TERMINATION

9.1 Initial Term & Automatic Renewal: The initial term of this Agreement shall commence on **January 15, 2026** and continue for twelve (12) months through **January 14, 2027** ("Initial Term"). This Agreement shall automatically renew for successive twelve (12) month terms unless either Party provides written notice of non-renewal at least **sixty (60) calendar days** prior to expiration.

9.2 Clause 14.2 / 9.2 — Termination for Convenience: Either Party may terminate this Agreement or any Statement of Work without cause and for convenience upon providing at least **thirty (30) calendar days' advance written notice** to the other Party.

9.3 Termination for Material Cause: Either Party may immediately terminate this Agreement upon written notice if the other Party materially breaches any term and fails to cure such breach within **fifteen (15) calendar days** following receipt of written notice.

SECTION 10 — GOVERNING LAW & DISPUTE RESOLUTION

10.1 Governing Law: This Agreement and any disputes arising out of it shall be governed by and construed in accordance with the substantive laws of the **State of New York**, without giving effect to conflict of law principles.

10.2 Mandatory Arbitration: Any dispute, claim, or controversy arising out of this Agreement shall be resolved through final and binding arbitration administered by the **American Arbitration Association (AAA)** in **New York County, New York**.

IN WITNESS WHEREOF, the Parties have executed this Master Services Agreement as of the Effective Date.

FOR SERVICE PROVIDER:
Acme Cloud Dynamics Inc.

FOR CLIENT:
Apex Global Retail LLC

By: **Marcus Vance**
Title: **Chief Executive Officer**
Date: **January 15, 2026**

By: **Elena Rostova**
Title: **Chief Operating Officer**
Date: **January 15, 2026**